Anti-Discrimination, Harassment, Bullying and Abuse of Power Policy

1 Purpose and scope

The girls Girl Pride Africa Kenya (GPAK) serves have often been judged, shamed or pushed out because they became pregnant young, because of their HIV status, or because they are poor. GPAK must not repeat that harm. This policy sets out how GPAK keeps its workplace and its programmes free from discrimination, harassment, bullying and the abuse of power, and what happens when someone raises a concern.

It applies to everyone listed under Document control, and protects staff, volunteers, participants, their families, visitors and partners. It covers conduct on and off duty where it is connected to GPAK, in the office, in the field, at events, by phone, by SMS, on WhatsApp and on social media.

Sexual exploitation or abuse of a participant or a child is always handled under the Safeguarding and PSEA Policy (POL-01), straight away, through the Safeguarding Focal Point. This policy covers the wider range of conduct described below.

2 Policy statement

GPAK has zero tolerance for discrimination, harassment, sexual harassment, bullying, victimisation and the abuse of power. Everyone has the right to be treated with dignity and respect, and to work, volunteer or receive support in a safe environment. GPAK will take every concern seriously, act on it promptly and fairly, and protect anyone who raises a concern in good faith.

3 Legal basis

- **Constitution of Kenya, 2010, Article 27:** equality and freedom from discrimination, including on the grounds of race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, dress, language or birth. **Article 28:** the right to dignity.
- **Employment Act, No. 11 of 2007, sections 5 and 6:** prohibit discrimination in employment and require employers to act against sexual harassment.
- **HIV and AIDS Prevention and Control Act, No. 14 of 2006:** prohibits discrimination on the grounds of actual or perceived HIV status.
- **Persons with Disabilities Act, 2025:** rights of persons with disabilities, including to reasonable accommodation.
- **Sexual Offences Act, 2006:** criminal sexual offences.
- **Computer Misuse and Cybercrimes Act, No. 5 of 2018, section 27:** cyber harassment is a criminal offence.
- **Protection Against Domestic Violence Act, 2015:** where harassment happens within a household GPAK works with.

4 Definitions

Term	Meaning in this policy	Examples at GPAK
Discrimination	Treating someone less favourably, directly or indirectly, because of a ground listed in Article 27, or because she is a teenage mother, unmarried, or living with HIV.	Refusing a girl a place because she is pregnant; giving starter kits to members of one church or clan first; not shortlisting a candidate who is a mother.

Term	Meaning in this policy	Examples at GPAK
Harassment	Unwanted conduct that violates a person's dignity or creates an intimidating, hostile, degrading or offensive environment, whether or not that was intended.	Mocking a girl's accent or home; repeated jokes about a colleague's religion or disability; spreading rumours about someone's HIV status.
Sexual harassment	Unwelcome conduct of a sexual nature: requests for sex or sexual contact linked to a benefit or a threat; sexual remarks, jokes, messages or images; unwanted touching.	A supervisor hinting that a contract renewal depends on a date; sending sexual messages on WhatsApp; comments on a volunteer's body.
Bullying	Repeated behaviour that intimidates, humiliates or undermines a person.	Shouting or swearing; constant unfair criticism; deliberately leaving someone out of meetings or WhatsApp groups; threats.
Abuse of power	Using a position, role or control over resources, information or decisions for personal gain, to pressure someone, or to treat them unfairly.	A mentor mother demanding favours before adding a girl to a support list; a staff member using a participant for personal errands; a manager blocking a colleague's leave as punishment.
Victimisation	Treating someone badly because they raised a concern, supported someone who did, or gave evidence.	Cutting a volunteer's stipend after she reported harassment.
Cyber harassment	Any of the above carried out by phone, SMS, WhatsApp, email or social media.	Posting a colleague's photo with insulting comments; sending threats by SMS.

5 Power at GPAK

Many people GPAK works with depend on it for counselling, school fees, transport, starter kits or a stipend. That gives staff, mentor mothers and community volunteers real power over them, even when no one intends to use it. GPAK manages this power in four ways:

1. **Decisions follow written criteria.** Who receives support, and how much, follows the needs assessment and the participant's support plan (PRG-01), checked by someone other than the person who proposed it, never personal preference, family ties, religion, ethnicity or politics.
2. **No one has to earn GPAK support.** Support is never conditional on attending a religious service, a political event, a relationship, gratitude, unpaid work or silence.
3. **Relationships are limited.** A sexual or romantic relationship between anyone working for GPAK and a participant is prohibited (POL-01, POL-02). A relationship between two people at work where one supervises the other, or decides on the other's pay, must be declared under POL-07 so that the reporting line can be changed.
4. **Every girl has a route around her own mentor.** Participants can raise concerns without going through their mentor mother or case worker (POL-04).

6 Inclusion commitments

- GPAK serves girls regardless of ethnicity, religion, disability, HIV status, marital status, the number of children they have or how they became pregnant.
- Sessions are held in Dholuo, Kiswahili or English according to the group's choice, and in venues people with disabilities can reach. Reasonable adjustments are made for staff, volunteers and participants with disabilities.
- Pregnant and breastfeeding staff, volunteers and participants are supported, including time and a private space to breastfeed or express milk, and babies are welcome at participant sessions.
- No one is asked about their HIV status, pregnancy plans or marital status in a way that is not needed for their support or role, and recruitment never asks about them.
- Recruitment is open and based on the skills the role needs (POL-10). Programme graduates are encouraged to apply.

- Language in GPAK materials, reports and social media never labels or shames girls. GPAK says 'young mother' or 'adolescent mother', not 'teen mum' or 'victim'.

7 Everyone's responsibilities

Who	Responsibility
Everyone	Treat others with dignity, challenge or report unacceptable behaviour, and cooperate with investigations.
Supervisors	Set the example, make sure their team knows this policy, act at once on concerns, and protect anyone who reports.
Director	Owns the policy, makes sure concerns are investigated fairly and on time, and reports to the Advisory Committee.
Advisory Committee	Receives an anonymised summary of concerns at each meeting and handles any concern about the Director.
Safeguarding Focal Point	Handles any concern involving a participant or a child, and any sexual harassment concern where the person prefers it.

8 Raising a concern

A person who experiences or sees discrimination, harassment, bullying or abuse of power can:

- where they feel safe to, tell the person concerned that the behaviour is unwelcome and must stop (this is never required before making a report);
- tell their supervisor, the Director, or, if the concern is about the Director, the Chair of the Advisory Committee;
- tell the Safeguarding Focal Point, especially where a participant or a child is involved, or where the concern is sexual;
- for participants and community members: use any complaints route in POL-04, including the GPAK office in person, +254 725 737 867, info@gpakgirls.org or a feedback card;
- report anonymously or confidentially under the Whistleblowing Policy (POL-06).

Concerns should be raised as soon as possible, but a late report is still accepted and acted on. Anyone may also go directly to the police, the National Gender and Equality Commission, the Kenya National Commission on Human Rights or the Employment and Labour Relations Court.

9 How GPAK responds

1. The concern is acknowledged within 5 working days.
2. The Director (or the Chair of the Advisory Committee, where the Director is involved) appoints someone with no involvement in the matter to look into it. A participant's concern is handled with the SFP.
3. Where needed, interim protective measures are put in place at once: for example, changing a reporting line or a mentor-mother assignment, no-contact instructions, or paid suspension of the person concerned while the matter is looked into. Interim measures are not a finding of guilt.
4. Both sides are heard. The person complained about is told what the concern is and has a fair chance to respond, with a colleague of their choice present at any hearing, as the Employment Act requires.
5. The matter is concluded, or the person who raised it is updated, within 30 days. The outcome is recorded and shared with the people involved as far as confidentiality allows.
6. Where the concern is upheld, action follows under POL-10 (staff and volunteers), the relevant agreement (consultants and partners), or POL-09 (suppliers). Where it may be a crime, it is reported to the police.

A survivor-centred approach

- The person affected is believed, listened to and not blamed, and is consulted on every step that affects her or him.
- Support is offered, including counselling and, where needed, a change of supervisor, location or mentor mother.
- Information is shared only with those who need it (POL-03).

10 Confidentiality, false reports and retaliation

- Concerns and investigation records are kept confidential and stored securely, separate from routine personnel files, for at least 7 years.
- A concern raised in good faith is protected even if it is not upheld. Knowingly false or malicious reports are a disciplinary matter.
- **Retaliation is itself a serious breach of this policy.** Anyone who threatens, punishes, excludes or disadvantages a person for raising a concern, supporting someone who did, or giving evidence will face disciplinary action.

11 Training and monitoring

Everyone this policy applies to is introduced to it at induction and signs the acknowledgement page. Staff and mentor mothers receive a refresher every year, as part of the safeguarding and code of conduct training. The Director keeps an anonymised log of concerns (date, type, how it was handled, outcome, time taken) and reports it to the Advisory Committee at each meeting, so that patterns can be spotted and acted on.

Related GPAK policies

Code	Policy	How it links
POL-01	Safeguarding and PSEA Policy	Sexual exploitation and abuse; child protection
POL-02	Code of Conduct	Respect and non-discrimination standards
POL-04	Complaints and Feedback Policy	Routes for participants and community members
POL-06	Whistleblowing Policy	Anonymous reporting and protection
POL-07	Conflict of Interest Policy	Declaring relationships at work
POL-10	Human Resources and Volunteer Policy	Grievance and disciplinary procedure

Document control, approval and review

Item	Detail
Document	POL-14, Anti-Discrimination, Harassment, Bullying and Abuse of Power Policy
Document type	Organisational policy
Version	1.0 (first issue)
Policy owner	Director
Approved by	Advisory Committee
Applies to	All GPAK staff, Advisory Committee members, mentor mothers, peer support group facilitators, community volunteers, interns, consultants, contractors, suppliers and partners working on GPAK activities
Review	Every two years, or earlier if the law, a funder requirement or an incident review shows that a change is needed.
Where it is kept	Signed original in the policy file at the GPAK office; print copy in the due-diligence file; a copy is given to everyone it applies to at induction

Public copy. Internal forms, annexes and signature pages are kept on file by GPAK and are available on request.